

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE

JUDICIAL DEPARTMENT

Case No: W.P.No.22205/2013

**Ghulam Hiader Thind Vs. Federation of
Pakistan etc.**

JUDGMENT

Date of hearing:	30.03.2016
Petitioner by:	Mr. Muhammad Shahzad Shaukat, Advocate.
Respondent No.5 by:	Mr. Zia Ullah Ranjha and Ms. Kalsoom Khaliq, Advocates.

Abid Aziz Sheikh, J.- This constitutional petition
has been filed with the following prayer:-

*“It is, therefore, most respectfully
prayed that this petition be allowed, the
entire process in PP 266 Layya-V
including the polls held on 11.5.2013 may
kindly be declared as illegal, incompetent
void and of no legal effect.*

*2. It is further prayed that the
respondent No.2 may very kindly be
directed to hold fresh election in PP 266
Layya-V after completion of due process of
law”.*

2. Brief facts are that petitioner filed his nomination papers on the ticket of PML(N) to contest Punjab Provincial Assembly election from PP-266-Layya-V, scheduled to be held in year 2013. His nomination papers were rejected by Returning Officer, which order was also upheld by the Election Tribunal. The petitioner being aggrieved filed Writ Petition No.9349/2013, which was

allowed by the learned Full Bench of this Court on 23.04.2013. However, in CPLA No.636/2013, august Supreme Court granted leave on 09.05.2013 and as an interim relief petitioner was restrained from contesting election. On 11.05.2013 election was held and respondent No.5 was declared successful candidate by securing maximum number of votes. The Civil Appeal No.497/2013 arising out of CPLA No.636/2013 was disposed of on 08.07.2013 having become infructuous, however, it was observed that in future, if any, cause of action accrues to any of the party, they can agitate the same before the competent forum. The petitioner thereafter filed this constitutional petition with afore-noted prayer.

3. Learned counsel for respondent No.5, at the very outset raised preliminary legal objection to the maintainability of this petition. He submits that as the petitioner was a candidate for election in PP-266 Layya-V and also filed his nomination papers to contest said election, therefore, the exclusive remedy available to the petitioner to challenge the election process is through Election Petition under section 52 of the Representation of People Act, 1976 (“**ROPA**”), and this constitutional petition is barred under Article 225 of the Constitution of Islamic Republic of Pakistan, 1973. (“**Constitution**”). He placed reliance on Election Commission of Pakistan through its Secretary vs. Javaid Hashmi and others (**PLD 1989 SC 396**), Ayatullah Dr. Imran Liaqat Hussain vs. Election Commission of Pakistan and another (**PLD 2005 SC 52**) and Abdul Ghafoor vs. Shah Muhammad and 4. others (**1987 MLD 54**).

4. In response to above, preliminary legal objection, the learned counsel for the petitioner submits that because petitioner was not allowed to contest election due to

interim relief/order passed by the august Supreme Court, therefore, the petitioner was not a candidate for the purpose of filing Election Petition under Section 52 of ROPA. He submits that words “candidate for that election” mentioned in section 52 of ROPA, means contesting and validly nominated candidate as defined in Section 2(viii) and 2(xxvi) of ROPA. He submits that because petitioner was restrained through interim order to contest election, therefore, he was not validly nominated contesting candidate to file Election Petition. Adds that as the remedy of Election Petition under section 52 of ROPA was not available to the petitioner, therefore, the bar of Article 225 of the constitution, being not absolute, is not applicable to the petitioner and this constitutional petition being the only available remedy is maintainable. He placed reliance on the law laid down by august Supreme Court of Pakistan in I.A. Sherwani and others vs. Govt. of Punjab through Secretary Finance Div. Islamabad and others (1991 SCMR 1041), Ghulam Mustafa Jatoi vs. Additional District and Sessions Judge/ R.O. (1994 SCMR 1299) and Hafiz Hamdullah vs. Saif Ullah Khan and others (PLD 2007 SC 52).

5. Before touching merits of the case, I would like to dilate upon the question of maintainability of this petition. The learned counsel for the parties have been heard and relevant record perused with their able assistance on this preliminary objection. To better understand the controversy and resolve the moot question, it is convenient to briefly reiterate the facts which are simple and not disputed. Admittedly, petitioner filed his nomination papers to contest election for PP 266 Layya-V. His nomination papers were rejected by the Returning Officer on 06.04.2013 and his appeal was also dismissed by the

Election Tribunal on 10.11.2013. Petitioner's W.P.No.9349/2013 was allowed by the learned Full Bench of this Court on 23.04.2013 and the name of the petitioner was included in the list of validly nominated candidates. In CPLA before the august Supreme Court, the Leave was granted on 09.05.2013 and as an interim relief petitioner was restrained to contest the election. The election was held, where respondent No.5, secured maximum number of votes and declared as returned candidate. The appeal was disposed of by august Supreme Court on 08.07.2013 as having become infructuous. Thereafter petitioner filed this constitutional petition challenging the entire process of PP 266 Layya election being illegal and seeking direction for fresh election in said constituency.

6. Though the petitioner's counsel has not denied that under Article 225 of the Constitution, the election to Provincial Assembly has to be challenged under ROPA before the Election Tribunal, however, the main thrust of his argument is that because petitioner was not a candidate for the election of PP-226-Layya-V, therefore, he has no remedy under ROPA and only remedy available to petitioner is through this constitutional petition. To examine this line of argument, it is expedient to reproduce Article 225 of the Constitution and Section 52 and 2(iv),(viii), (xxvi) of ROPA as under:-

“Article 225. No election to a House or a Provincial Assembly shall be called in question except by an election petition presented to such tribunal and in such manner as may be determined by Act of [Majlis-e-Shoora (Parliament)]”

“Section 52. Election petition.---(1) No election shall be called in question except by an election petition made by a candidate for that election.

2(iv) “candidate” means a person proposed as a candidate for, or seeking election as a member;

2(viii) “contesting candidate” means a validly nominated candidate who has not withdrawn his candidature;

2(xxvi) “validly nominated candidate” means a candidate whose nomination has been accepted;”

Article 225 of the Constitution postulates that no election to a House or a Provincial Assembly shall be called in question except by an election petition presented to Tribunal in such manner as may be determined by the Act. Admittedly, the relevant Act under which election petition could be filed is ROPA. As per section 52 of ROPA election petition can be filed by a candidate for that election. The word “candidate” is defined in section 2(iv) of ROPA, means a person proposed as a candidate for or seeking election as a member. No doubt, in view of above explicit definition of word “candidate”, by filing nomination papers for election, a person become a candidate for the purpose of filing a petition under section 52 of ROPA. It is settled law that if the language of a statutory provision is unambiguous and clear, the provision must be accorded the express meaning without deviation. Reliance is placed on A & B Food Industries Ltd. vs. Commissioner of Income Tax/Sales, Karachi (1992 SCMR 663) and M/s State Cement Corp. of Pakistan Ltd. vs. Collector of Customs Karachi and another (1998 PTD 2999). The argument of learned counsel for the petitioner that only contesting candidate who was validly nominated, could file petition under section 52 of ROPA is misconceived. The words “candidate” “contesting candidate” and “validly nominated candidate” are three

independent and separately terms defined in ROPA. If the intention of the Legislature was that under section 52 of ROPA only contesting candidate or validly nominated candidate could file election petition, then the provision of section 52 could specifically provide for the same. It is well established rule of interpretation that when words are not clear or provision in question is confusing, only then duty of interpretation arises but if language of provision is clear and explicit, then the Court must give effect to it. The provision of section 52 of ROPA is a remedial provision inserted for the benefit of the candidates for elections. Apparently, by using the word “candidate” and not using the word “contesting candidate” in section 52 of ROPA, the legislature has expressed its intention and widened the scope of remedial provision of section 52 of ROPA by way of providing remedy of election petition to even those candidates who merely filed nomination papers but could not contest election for any reason. Remedial provisions are to be construed liberally so as to secure, that relief contemplated in said provision should not be denied to those for whom it is intended. In case, the narrow interpretation as presented by petitioner’s counsel, is accepted, then the remedy of election petition under section 52 of ROPA will only be confined to contesting candidates, which is not only contrary to explicit language of section 52 of ROPA but also against the clear intention of the legislature.

7. In the present case, the petitioner has not only filed his nomination papers but as admitted in para 5 of the petition, after order passed by the learned Full Bench of this Court, his name was also included in the list of validly nominated contesting candidates. Hence, there is no manner of doubt that petitioner was a candidate for the

purpose of filing election petition under section 52 of ROPA. Article 225 of the Constitution is expressed in the negative form to give exclusive jurisdiction in election case to the Tribunals appointed by the Election Commission of Pakistan. Thus it excludes and ousts the jurisdiction of all Courts in regard to election matters and prescribes only one mode of challenge i.e. through election petition. If the dispute is about the conduct and validity of election, as in the present case, it could only be challenged through election petition under ROPA. The question regarding the jurisdiction of this Court under Article 199 of the Constitution had arisen before the Supreme Court in Election Commission of Pakistan v. Javaid Hashmi and others (PLD 1989 SC 396), and it was held that from Article 225 of the Constitution, a clear intention could be spelt out to completely oust the jurisdiction of all Courts in regard to election matters and to provide for only one mode of challenge which was by filing an election petition as provided by section 52 of ROPA. It was observed in the said case, that there can only be challenged to the election by one mode, that is, by an election petition and that too after the process of the election is completed. It was further held by the Supreme Court that Representation of People Act is a self-contained enactment and it contemplates various steps to be taken in the process of completion of the election and, therefore, the expression “election” would include the entire process of election as contemplated by the said enactment. The aforesaid view was also followed in Ghulam Mustafa Jatoi vs. Addl. District & Sessions Judge/R.O. (1994 SCMR 1299), Ayat Ullah Dr. Imran Liaqat Hussain vs. Election Commission of Pakistan and another (PLD 2005 SC 52), Moulana Amir Zaman Bokhari vs. Election Commission of Pakistan through

Secretary Constitution Avenue, Islamabad and 9 others (PLD 2003 Quetta 88) and Muhammad Ramzan vs. Jam Kaim Ali and others (1997 MLD 2819).

8. The case law relied upon by the learned counsel for the petitioner is not applicable to the facts and circumstances of this case. In said judgments, it is held that where the remedy of election petition under ROPA is not available only then constitutional petition will be maintainable. As already discussed above, because remedy under section 52 of ROPA to file election petition was available to the petitioner, therefore, this petition is not maintainable. In view of above discussion, the preliminary legal objection raised by the learned counsel for respondent No.5, is sustained and this writ petition is **dismissed** being not maintainable.

(Abid Aziz Sheikh)
Judge

Approved for Reporting.

JUDGE

Raza